

and was neither denied an opportunity to present testimony in some form on his behalf nor denied the opportunity to cross-examine witnesses.” *Cook v. Boyd* (E.D.Pa. 1995) 881 F. Supp. 171, 175; see also *In re T.N.T.* (2002) 258 Ga. App. 396 [574 S.E.2d 444, 446–447].) Likewise, Plaintiff was not denied due process where he retained counsel to represent him at the hearing on the demurrer. The Court did not prohibit Plaintiff’s counsel from arguing at the Demurrer and from otherwise representing Plaintiff as his limited scope counsel. It was plaintiff who chose not to allow his attorney to present arguments on his behalf. Based on behavior demonstrated by Plaintiff in the past, the Court finds that this tactic of retaining counsel and directing counsel not to make arguments is further delay tactics designed to keep Defendant needless engaged in a case that has no merit.

Based on the foregoing, the Court finds that there is good cause to deny Plaintiff’s Motion for Reconsideration.

Ruling

Plaintiff’s Motion for Reconsideration is **denied**. Since the demurrer was sustained without leave to amend, this case is dismissed without prejudice.

8. 9:00 AM CASE NUMBER: C25-01776

CASE NAME: JOHN DOE VS. ETHAN BUCKLEY

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BUCKLEY, ETHAN

TENTATIVE RULING:

The Court **continues** the hearing on Defendant Buckley’s demurrer to complaint to March 25, 2026 at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE PETER A. MEYER RE PETER A. MEYER

FILED BY: ZIMMER, INC.

TENTATIVE RULING:

Summary

Defendant Zimmer, et. al (“Defendant”) filed an Unopposed Notice of Hearing and Motion for order admitting Peter A. Meyer, Esq. as Counsel *Pro Hac Vice* for Defendant. The Motion is **granted**. No appearance is required at the February 11, 2026 hearing.

Background

On October 27, 20205, Defendant Zimmer, et. al (“Defendant”) filed an Unopposed Notice of Hearing and Motion for order admitting Peter A. Meyer, Esq. as Counsel *Pro Hac Vice* for Defendant (“Motion”). The Motion was supported by the Verified Application of Peter Meyers, Esq.